

24STCV05112 24STCV05112

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-01

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Case Number: 24STCV05112 Hearing Date: September 1, 2026 Dept: 512

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Lopez

v. Kia America Inc. COMP.

FILED: 02-29-24

CASE NUMBER: 24STCV05112

NOTICE: OK

PROCEEDINGS: MOTION FOR ATTORNEY'S FEES, COSTS, AND
EXPENSES

MOVING PARTY: Plaintiff

Gabriel Banales

RESP. PARTY: Defendant Kia America, Inc.

MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

(Civ. Code, §§ 1794, subd. (d))

TENTATIVE RULING:

Plaintiff Gabriel Banales Lopez's Motion

For Attorneys' Fees, Costs, and Expenses is DENIED.

Moving party is ordered to give

notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,
rule 3.1300) OK

☒
Correct Address (CCP §§ 1013, 1013a) OK

☒
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 19, 2026 ☐
Late ☐ None

REPLY: Filed
on August 24, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On February 29, 2024, Plaintiff
Gabriel Banales Lopez ("Plaintiff") filed the instant action against Defendant
Kia America, Inc. ("Defendant") and Does 1-100.

On March 19,
2024, Defendant filed an Answer.

On July 2, 2025,
Plaintiff filed a Notice of Settlement of Entire Case.

On August 21,
2025, the Court, pursuant to Plaintiff's request, dismissed the action without
prejudice and retained jurisdiction pursuant to Code of Civil Procedure section
664.6. (8/21/25 Order.)

On August 5,
2026, Plaintiff filed the instant Motion For Attorneys' Fees, Costs, and
Expenses (the "Motion") and request for judicial notice.

That same day,
Plaintiff filed a Memorandum of Costs.

On August 19,
2026, Defendant filed an Opposition.

On
August 24, 2026, Plaintiff filed a Reply and Evidentiary Objections to the
Proudfoot declaration filed in support of the Opposition.

II. Procedural Issues

As an initial matter, the
Court finds the Motion is untimely filed and served.

Plaintiff provides evidence
of Defendant's accepted statutory offer to compromise pursuant to Code of Civil
Procedure section 998, which includes a provision stating the following:

Kia offers to
permit judgment to be entered solely upon the terms of Paragraph 1, and
Plaintiff shall retain the right to petition the Court for an award of
reasonably and actually incurred attorney fees and costs recoverable pursuant
to California Civil Code Section 1794(d). In ruling on Plaintiff's fee/cost
motion(s), the attorney fees, expenses and costs amount shall be calculated as
if Plaintiff was found to have prevailed in this action under section 1794(d)
of the California Civil Code. Kia expressly reserves all defenses to
Plaintiff's fee/costs motion(s). Plaintiff may recover for attorney fees and
costs reasonably and actually incurred in bringing such a fee/cost motion(s).
Kia will pay the attorney fees and cost amounts determined by the Court within
60 days' written notice of entry of the Court's ruling awarding those amounts.

(Motion, Azimtash
Decl., Exh. G, p. 2, ¶ 2.)

However, neither the 998 offer nor the Motion, Opposition, or Reply state the parties stipulated to extend the attorneys' fees motion and costs memorandum deadlines outlined in California Rules of Court, rule 3.1702. (Cal. Rules of Court, rule 3.1702, subd. (b)(2).) Further, there has been no request to the Court for an extension of the Rule 3.1702 deadlines, and the Court has not previously found good cause to extend the deadlines outlined by the California Rules of Court. (Cal. Rules of Court, rule 3.1702, subd. (d).)

As such, the Court is governed by the California Rules of Court for the Motion. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 648-649.)

"Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. [Citations.] A motion for fees incurred up to the time of judgment in the trial court 'must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case.' [Citations.] With exceptions ..., the time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. [Citation.] A voluntary dismissal is 'effectively a "judgment" ' within the meaning of the rule prescribing the time to appeal." (Id., at p. 648, citing Cal. Rules of Court, rule 3.1702.)

"A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (Id., at p. 649.)

California Rule of Court, rule 3.1702, and its predecessor, were " 'adopted in order to provide time limits within which all motions for attorney fees in civil cases must be made,' including cases that end in a voluntary dismissal." (Ibid., emphasis added.)

Here, the case was voluntarily dismissed on August 21, 2025, and thus the clock started running on 8/21/25 when the dismissal concluded litigation and triggered a right to fees. (See *ibid.*) As such, the deadline to file a motion for attorney's fees was 180 days after August 21, 2025 – namely, February 17, 2026. (See *id.*, at pp. 648-649.) However, the Motion was inexplicably filed and served on August 5, 2026, nearly a year

after the dismissal was ordered and absent appropriate stipulation or a court order. (See Cal. Rules of Court, rule 3.1702; Motion.) While the Court acknowledges the moving papers and Reply state the delay in filing the Motion was due to informal meet and confer attempts with Defendant, the Court also notes the Opposition contends no meet and confer attempts were performed. (Motion, p. 4, Azimtach Decl., ¶ 16; Opp., p. 3; Reply, p. 4.) The Court finds the Motion is untimely.

Thus, the Motion is DENIED.

III.

Conclusion &
Order

Based on the foregoing, Plaintiff Gabriel Banales Lopez's Motion For Attorneys' Fees, Costs, and Expenses is DENIED.

Moving party is ordered to give
notice.